



MONGOLIA LAW

May 5, 2011

Ulaanbaatar city

ABOUT HEALTH

CHAPTER ONE COMMON GROUNDS

Article 1. Objective of the law

1.1. The purpose of this law is to determine the basic principles and policies of the government regarding health, and to protect citizens' health and ensure the right to receive health care and services, the role of enterprises, organizations, officials and citizens, and the activities of health institutions and employees. is to regulate the connected relationship.

Article 2. Legislation on health

- 2.1. Legislation on health consists of the Constitution of Mongolia, this law and other legislative acts issued in accordance with these laws.
- 2.2. If the international agreement of Mongolia stipulates differently than this law, the provisions of the international agreement shall be followed.

Article 3. Definition of legal terms

3.1. The following terms used in this law shall be understood in the following meanings:

- 3.1.1. "health" means that a person is free from diseases and disorders and is well-being in terms of physical, mental and social life;
- 3.1.2 "health protection" means complex medical, social and economic measures aimed at protecting the health of the population by organizing health care and services for the population;
- 3.1.3 "health care and services" means public health and medical care and services;
- 3.1.4 "health organization" means a legal entity with the purpose and main functions of providing health care and services to the population;
- 3.1.5 "medical specialist" means a doctor, junior doctor, dentist, traditional medicine doctor, nurse, midwife, or pharmacist who has graduated from a medical university or college and has a license to practice. , drug director, rehabilitation specialist;
- /This section was amended by the law of April 22, 2016/*
- 3.1.6 "health worker" means a medical specialist, public health worker and other workers working in a health institution; */This clause was amended by the law of January 12, 2024./*
- 3.1.7 "international quarantine disease" means the disease specified in the International Health Regulations;
- 3.1.8 "reduction of active foci" means taking measures to heal the foci of natural foci of infectious diseases transmitted from animals to humans when the natural foci become active or the disease occurs;
- 3.1.9 "treatment" means complex professional activities of a doctor aimed at diagnosing and curing diseases, rehabilitation of patients, and prevention of illness;
- 3.1.10 "nursing" means comprehensive professional activities of nurses aimed at preventing illness, curing illness, and rehabilitating patients;
- 3.1.11. "midwifery" means complex professional activities aimed at diagnosing, monitoring, managing childbirth, treating, and preventing illness of mothers, fetuses, and newborns during pregnancy, childbirth, and postpartum;
- 3.1.12 "preparation of medicine" means preparation, packaging, inspection and dispensing of medicines according to pharmaceutical science;
- 3.1.13. "medical equipment" is defined in Article 4.1.10.b of the Law on Medicines and Medical Devices; */This provision was revised by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

3.1.14. "medical device" is defined in Article 4.1.10 of the Law on Medicines and Medical Devices; /
This provision was revised by the law dated June 5, 2024 and will be enforced from October 1, 2024./

~~3.1.15 "accessories of medical equipment" means auxiliary equipment necessary for normal operation of medical equipment; /This provision was deemed invalid by the law of June 5, 2024, and will be enforced from October 1, 2024./~~

~~3.1.16 "prosthetics" means things created for the purpose of replacing human tissues and organs or correcting disorders and defects; /This provision was deemed invalid by the law of June 5, 2024, and will be enforced from October 1, 2024./~~

3.1.17 "accreditation of a health care institution" means external assessment and conclusion of the structure and operation of a health care institution, the technology and quality of medical care and services;

3.1.18 "donor" is defined in Articles 3.1.2-3.1.4 of the Law on Donors;

3.1.19 "health promotion" means comprehensive activities aimed at monitoring and strengthening the health of the population, forming healthy behavior in the population, and creating a healthy living environment.

3.1.20 "other medical specialist" means any other specialist who has graduated from a medical university or college and does not require a professional license;
/ This section was added by the law of April 22, 2016/

3.1.21 "rehabilitation" means joint complex activities of rehabilitation and other medical specialists aimed at eliminating the consequences of the loss of human body structure and function caused by illness, injury, or other factors;
/ This section was added by the law of April 22, 2016/

3.1.22 "basic qualification" means the knowledge, ability, and practice of working independently in one field of medical science of a senior doctor who graduated from a medical education university;
/ This section was added by the law of April 22, 2016/

3.1.23 "varied specialization" means the knowledge, ability, and practice of working in a specific field of medical science of a medical specialist who graduated from a medical education school. */ This section was added by the law of April 22, 2016/*

3.1.24 "primary health care and services" means family health care and services provided by the state based on the health needs of the population and some essential care and services of basic specialization in the territory of jurisdiction with the participation of citizens, families and enterprises activities to be provided to everyone regardless of territorial jurisdiction; */ This provision was added by the law dated May 15, 2020./*

3.1.25 "long-term medical care and services" means the provision of specialized nursing and rehabilitation care and services for a period of 1 month or more.
/ This provision was added by the law dated May 15, 2020./

3.1.26. "public health worker" is defined in Article 3.1.17 of the Law on Public Health Care and Services. */ This clause was added by the law of January 12, 2024./*

Article 4. Policy and basic principles to be adopted by the government regarding health

4.1. The state will implement the following policies regarding the health of the population:

4.1.1. to receive special attention and patronage of the health of the population;

4.1.2. providing equal and accessible health care and services to the population without discrimination;

4.1.3. treating health care facilities equally regardless of ownership;

4.1.4. In accordance with the Constitution of Mongolia, the state shall be responsible for the payment of certain types of health care and services provided to citizens.

4.2. The following basic principles shall be followed in the implementation of the policy specified in Section 4.1 of this law:

4.2.1. to provide health care and services to the population based on humane, compassionate ethics, scientific knowledge, findings, evidence, advanced methods of modern and traditional medicine;

4.2.2. to make public health care and services a priority, and then to ensure the independent, open and multi-proprietary basis of health care institutions in providing medical care and services;

4.2.3. implementation of health policies and measures through joint activities of government and non-government organizations, local administrative and local self-governing organizations, enterprises, organizations, communities, families and citizens.

SECTION TWO HEALTH MANAGEMENT AND ORGANIZATION

Article 5. Health management system

5.1. The health management system consists of the Great Khural of Mongolia, the Government, the central state administrative organization in charge of health, local administrative and local self-governing organizations, and the management of health organizations.

/This section was amended by the law dated August 17, 2012/

Article 6. Powers of the Great Khural of Mongolia

6.1. The Great Khural of Mongolia shall exercise the following powers to protect and promote health:

6.1.1. to determine the policy to be followed by the government regarding health;

6.1.2. supervision of the work organized by the government on the implementation of health legislation
put;

6.1.3. to determine the role of health institutions, citizens and other organizations in matters of public health and life protection during emergencies;

6.1.4. solve the issue of Mongolia's accession to or cancellation of international agreements on health issues;

6.1.5. other powers provided by law.

Article 7. Powers of the Government of Mongolia

7.1. The Government of Mongolia (hereinafter referred to as "Government") shall exercise the following powers in addition to Article 9 of the Law on the Government of Mongolia regarding the protection and promotion of health:

7.1.1. to organize the implementation of the government's health policy;

7.1.2. organizing the fulfillment of laws and regulations on health;

7.1.3. financing and monitoring the implementation of approved health policies and programs;

/This provision was amended by the law of December 17, 2021./

7.1.4. to enter into agreements and negotiations with the Governments of other countries and international organizations within the scope of their mandate on issues of cooperation in the health sector;

7.1.5. approving the procedure for granting funds to citizens who will undergo medical treatment in a foreign country;

7.1.6. other powers provided by law.

~~7.2. Under the Prime Minister of Mongolia, a part-time National Council with the responsibility of coordinating the implementation of the state's health policy may be established and run. /This part was considered invalid by the law of January 12, 2024./~~

~~7.3. The Prime Minister of Mongolia shall approve the composition and working procedures of the National Council specified in Article 7.2 of this Law. /This part was considered invalid by the law of January 12, 2024./~~

Article 8. Powers of the central state administrative organization in charge of health issues

8.1. The central state administrative organization in charge of health issues shall exercise the following powers to protect and promote health:

8.1.1. organize and implement the implementation of laws and government decisions on health
provide;

8.1.2. to study, control and evaluate the health status of the population, determine the policy and development trends of the health sector based on demand;

8.1.3. various specialty hospitals, specialized centers, general and specialized hospitals, other state institutions working under the central state administrative organization responsible for health issues
provide management; /

This section was amended by the law of April 22, 2016/

8.1.4. to plan and organize health care and services for the population, health

organization location, structure, organization, type and hierarchy of care and services, hospital and sanatorium beds
set a ceiling;

8.1.5. professional and methodological training for citizens, government and non-government organizations to protect and support the health of the population
provide assistance;

8.1.6. developing and coordinating the implementation of national programs and projects to protect and strengthen the health of the population,
conduct monitoring and evaluation, and calculate the results;

8.1.7. to commission academic research and research on health issues;

8.1.8. define and implement the human resource development policy of the health sector;

8.1.9. determine and ensure the implementation of the policy for the qualification and retraining of medical specialists, determine the number of health professions
and indexes, the number of medical education training institutions, the number of admission control, and the provision of training base hospitals in cooperation with
the central state administrative organization in charge of education;

8.1.10. solve the issue of providing social security for health workers in cooperation with relevant organizations;

8.1.11. determining the financing policy for health care and services, planning and implementing the budget;

8.1.12. determine the health insurance financing policy together with the relevant organization;

8.1.13. to guide and control the activities of provincial and capital health institutions;

8.1.14. define health management and information system policies and provide information;

8.1.15. in accordance with the Law on Public-Private Partnerships in the Healthcare Sector, plan public-private partnership projects, issue project proposals, ensure
the implementation of public-private partnership agreements, and supervise; */This provision was amended by the law dated December 9, 2022./ / This
provision was amended by the law dated April 22, 2016/*

/ This provision was added by the law of August 17, 2012/

/ This provision was considered invalid by the law of December 21, 2017./

~~8.1.16. Develop and approve health care, services, health care institutions and industry standards together with the
competent authorities~~

/ This provision was considered invalid by the law of December 21, 2017./

8.1.17. to organize the work of granting permission to medical specialists to engage in professional activities;

/ This provision was added by the law of August 17, 2012/

8.1.18. monitor the implementation of health care and service quality policies and organize activities for granting accreditation to health institutions;

/ This provision was added by the law of August 17, 2012/

8.1.19. compile and report health statistics;

/ This provision was added by the law of August 17, 2012/

8.1.20. to ensure the implementation of health sector development and health worker development policies, and conduct research;

/ This provision was added by the law of August 17, 2012/

8.1.21. to protect the health of citizens, to prevent illness, to reduce or eliminate the health consequences caused by diseases, disorders, and injuries, to conduct
training and promotion, and to organize health promotion measures;

/ This provision was added by the law of August 17, 2012/

/ This provision was amended by the law of February 5, 2016/

~~8.1.22. to organize activities for registration and verification of medicines, and to inform the public about the quality and safety of medicines
to report;~~

/ This provision was deemed invalid by the law of June 5, 2024, and will be enforced from October 1, 2024./

/ This provision was added by the law of August 17, 2012/

8.1.23. to organize activities for the participation of health workers in post-graduate training and the awarding of qualification degrees; */This provision was added by
the law of*

August 17, 2012/

8.1.24. organization and implementation of activities involving the prevention and early detection of infectious and non-infectious diseases based on the population's
age, gender, and health risks

control;

8.1.25. to take measures to improve the operation of the common fund, to ensure normal, reliable operation and security; */This provision was added by the law dated January 12, 2024./ / This provision was added by the law dated May 15, 2020./*

8.1.26. other powers provided by law. */This provision number was amended by the law dated January 12, 2024./ / This provision number was amended by the law dated August 17, 2012/*

/The number of this provision was amended by the law dated May 15, 2020./

8.2. Under the central state administrative organization in charge of health issues, a non-full-time professional council may be established and employed to determine health sector policies and development trends, organize the implementation of health laws and government decisions, and provide advisory functions to ensure their implementation. .

8.3. The composition and working procedures of the professional council specified in Article 8.2 of this law shall be approved by the member of the government in charge of health issues.

8.4. Procedures for collecting, processing, using, storing, and ensuring security of health information will be developed and approved by the government in cooperation with the central state administrative organization in charge of health issues and the central state administrative organization in charge of electronic development and communication. */This section was amended by the law of January 12, 2024./*

/This section was added by the law dated May 15, 2020./

8.5. The procedure for organizing activities specified in Sections 8.1.24 and 19.3.3 of this Law shall be approved by the member of the Government in charge of health.

/This section was added by the law dated May 15, 2020./

8.6. The package of essential health care and services shall be approved by the member of the government in charge of health.

/This section was added by the law dated May 15, 2020./

8.7. The list and procedure for providing long-term medical care and services in combination with education and social welfare services shall be jointly approved by the member of the Government in charge of health, education and social welfare.

/This section was added by the law dated May 15, 2020./

8.8. Procedures for providing specialty hospitals and other health institutions at the state and regional level with expertise and methods, as well as directions and scope of assistance and services, shall be approved by the member of the government in charge of health.

/This section was added by the law dated May 15, 2020./

8.9. The government member in charge of health shall approve the methodology for identifying rare diseases and disorders that are dangerous to human life or cause disability. */This section was added by the law dated May 15, 2020./*

8.10. The procedure for establishing and evaluating requirements for software for health care and services, and reporting software that meets the requirements shall be approved jointly with the central state administrative organization in charge of health issues and the central state administrative organization in charge of electronic development and communication. */This part was added by the law of January 12, 2024./*

Article 9.

/This article was considered invalid by the law of August 17, 2012/

Article 10. Powers of the Representative Assembly of citizens of provinces, sums, capitals and districts */The title of this article was amended by the law of April 22, 2022./*

10.1. The Assembly of Representatives of citizens of provinces, sums, capitals, and districts shall exercise the following powers to protect and promote health: */This section was amended by the law of April 22, 2022./*

10.1.1. organizing the implementation of health laws and government decisions made in connection with their implementation in their respective territories;

10.1.2. Discussion and conclusion of Governor's report and information on health issues of the population of the territory under jurisdiction to give;

10.1.3. to make and implement programs and decisions to protect and support the health of the population of the territory under jurisdiction control;

10.1.4. ensure joint participation of governmental and non-governmental organizations and citizens in measures to protect and support the health of the population of the territory under their jurisdiction, and coordinate their activities;

10.1.5. other powers provided by law.

Article 11. Powers of the Governor at all levels

11.1. Governors of provinces and capitals exercise the following powers to protect and promote health:

11.1.1. to organize the implementation of the decisions made by the government and local self-governing organizations in connection with the implementation of health laws;

11.1.2. to protect and support the health of the population in the territory under its jurisdiction, to develop programs and projects that define the immediate and future, and to organize the implementation of decisions made by the Assembly of Citizens' Representatives;

11.1.3. to improve the structure and organization of health institutions in the territory under their jurisdiction in consultation with the central state administrative organization in charge of health issues, to optimally allocate material bases, human and financial resources;

11.1.4. to promptly take the necessary measures in the event of an extremely dangerous natural phenomenon or an international curfew disease;

11.1.5. to organize work to encourage and promote groups, enterprises, and organizations that actively and proactively work in the field of health protection and promotion;

11.1.6. to appoint and dismiss the head of the health department of the province and capital in accordance with the Civil Service Law in consultation with the member of the government in charge of health;

11.1.7. organizing work to provide social security and stable working conditions for medical professionals working in the health care institutions of the jurisdiction;

11.1.8. provide additional funds to the health care institutions of the jurisdiction;

11.1.9. consult with the head of the health department on the issue of appointing and releasing the management of health institutions other than general hospitals;

[/ This provision was amended by the law of April 22, 2016/](#)

11.1.10. other powers stipulated by law.

11.2. Governors of sub-districts, teams, districts, and committees shall exercise the following powers to protect and promote health: [/ This section was amended by the law dated April 22, 2022./](#)

11.2.1. to organize the implementation of decisions made by the Government, local self-governing organizations, and higher-level governors in connection with the implementation of health legislation in their respective territories;

11.2.2. ensuring equality and access to health care and services for the population of the territory;

11.2.3. to organize work involving enterprises, organizations and citizens in public events in the field of health protection and promotion;

11.2.4. to strengthen the health institutions of the jurisdiction in terms of necessary personnel, material base, and finances;

11.2.5. other powers stipulated by law.

11.3. In consultation with the head of the health center of the district and village with the governor of that level and the head of the provincial health department appointed and dismissed.

Article 12. Powers of provincial and capital health departments

12.1. Provincial and metropolitan health departments shall exercise the following powers to protect and promote health:

12.1.1. to organize the implementation of decisions made by the Government, local self-governing organizations, and governors in connection with the implementation of health legislation in their respective territories;

~~12.1.2. to make suggestions and conclusions on the issue of whether or not to establish and grant a special license to health institutions — other than those with national services or those with foreign investment, and present them to the Governor of that level; /~~

[This section was deemed invalid by the law of January 6, 2023./](#)

12.1.3. hospital beds within the limits set by the central state administrative organization in charge of health issues regulate;

12.1.4. to provide professional and methodical management of health care institutions in the jurisdiction, control;

12.1.5. To provide health statistics of the population of the jurisdiction, reports, news and information of health institutions to the relevant authorities.

12.2. The head of the health department of the province or capital, in consultation with the governor of that level, appoints and dismisses the head of the health institution other than the affiliated general hospital in accordance with the laws and regulations. */This provision was amended by the law of April 22, 2016/*

CHAPTER THREE TYPES OF HEALTH CARE AND SERVICES

Article 13. Types of health care and services

13.1. Health care and services are of the following types:

13.1.1. social health care and services;

13.1.2. medical care and services.

13.2. Community health care and services include monitoring, researching and controlling the health status of the population and the factors affecting it, promoting and protecting health, preventing diseases and disorders, and providing health education to the population.

~~13.3. The health care organization shall provide public health care and services alone or in cooperation with other enterprises, organizations, communities, and citizens. */This part was considered invalid by the law of January 12, 2024./*~~

13.4. Medical care and services are family health care, specialized medical care, obstetrics, emergency medical care, specialized nursing care, emergency care, and rehabilitation.

/This section was amended by the law of April 22, 2016/

13.5. Medical care and services are primary and referral.

/This section was amended by the law of April 22, 2016/

13.6. Types of medical care and services and their related relations About medical care and services regulated by law.

/This section was amended by the law of April 22, 2016/

13.7. On disaster health care and services to be provided individually or jointly with the government, the public, enterprises, organizations, and citizens in the event of an outbreak of an infectious disease involving a large population or a dangerous phenomenon. The disaster prevention health service established in accordance with the law shall also be organized in accordance with the law. */This section was added by the law of April 22, 2016/*

/This section was amended by the law of February 2, 2017/

CHAPTER FOUR SYSTEM OF HEALTHCARE INSTITUTIONS

Article 14. Health care organization system

14.1. The system of health care organizations consists of public, private, and mixed ownership health care organizations responsible for public health, medical care, services, provision of drugs and medical equipment, medical education, research, and training activities. */This section was amended by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

Article 15. Types of organizations providing health care and services

15.1. Organizations providing health care and services are of the following types:

15.1.1. family health center;

15.1.2. sum, village health center;

15.1.3. relief and care center;

/This clause was amended by the law of April 22, 2016/

15.1.4. clinic;

15.1.5. rest area;

15.1.6. community health center;

15.1.7. general hospital;

15.1.8. nursing;

15.1.9. ambulance center;

15.1.10. rehabilitation center; /

[*This clause was amended by the law of April 22, 2016/*](#)

15.1.11. special hospital; /

[*This clause was amended by the law of April 22, 2016/*](#)

15.1.12. special professional center.

15.1.13. various specialty hospitals; /This

[*provision was added by the law of April 22, 2016/*](#)

15.1.14. nursing center. /

[*This provision was added by the law of April 22, 2016/*](#)

15.2. The organization specified in clauses 15.1.12 and 15.1.13 of this law is the central state administrative organization in charge of health will work under the jurisdiction.

[*This section was amended by the law of April 22, 2016/*](#)

Article 16. Functions of organizations providing health care and services

16.1. 15.1.1, 15.1.2, 15.1.3, 15.1.4, 15.1.5, 15.1.7, 15.1.8, 15.1.9, 15.1.10, 15.1.11, 15.1.13, 15.1 of this law. The executive functions of the organization specified in Article 14 shall be organized in accordance with the Law on Medical Care and Services.

[*This section was amended by the law of April 22, 2016/*](#)

16.2. The family health center is a registered private health organization on a voluntary basis with the main function of providing family health care and services provided by the government to the population of cities and towns.

[*This section was amended by the law of April 22, 2016/*](#)

~~16.3. The Government shall determine the number of citizens per family health center. /This section was repealed by the law of April 22, 2016/~~

16.3. The model rules of the family health center shall be approved by the member of the government in charge of health issues. /The number of this section was amended and revised by the law of April 22, 2016/

16.4. Sum and village health center shall be a locally-owned legal entity providing primary health care services to the rural population in the form of outpatient and inpatient treatment. has a branch.

[*The number of this section was amended and revised by the law of April 22, 2016/*](#)

[*This section was revised by the law of May 15, 2020./*](#)

~~16.5. The ranking of Sumy health centers, the scope of service of certain Sumy health centers that will provide care and services to the population of other Sumy, and the establishment and reorganization of team doctor branches shall be decided by the member of the government in charge of health. /This section was repealed by the law of April 22, 2016/~~

~~16.6. The palliative and care center is an organization that provides palliative care and services to patients in the terminal stages of cancer and other diseases. /This section was repealed by the law of April 22, 2016/~~

16.7. A clinic is an institution that provides specialized medical care and services in the form of outpatient or day treatment, or in the form of outpatient or inpatient treatment, based on basic or specialized specialization.

[*The number of this section was amended and revised by the law of April 22, 2016/*](#)

[*This section was revised by the law of May 15, 2020./*](#)

16.8. A midwifery center is an organization that provides midwifery care and services to the population.

/The number of this section was amended and revised by the law of April 22, 2016/

16.9. The community health center will organize the implementation of laws and regulations on public health care and services, and activities to create an environment to support health at the provincial and district levels. */This section was amended by the law of January 12, 2024./*

/The number of this section was amended by the law of April 22, 2016/

16.10. The General Hospital is an organization that provides primary health care and referral care and services in at least five basic health specialties in Suma with a resident population of at least 10,000, and referral care and services in the form of outpatient and inpatient care in provincial centers and districts in at least seven basic specialties. General hospitals operating in provincial centers and districts may additionally provide essential referral care and services in some specialized specialties based on the health needs of the population. */The number of this section was amended and revised by the law of April 22, 2016/*

/This section was revised by the law of May 15, 2020./

16.11. The nursing facility is an institution that provides rehabilitation and traditional medical care and services in the form of inpatient treatment using springs and deposits of other natural factors whose quality and resources have been determined.

/The number of this section was amended and revised by the law of April 22, 2016/

16.12. An ambulance center is an organization that provides emergency services. */The number of this section was amended and revised by the law of April 22, 2016/*

16.13. The rehabilitation center is an organization that provides rehabilitation care and services in the form of outpatient service and inpatient treatment to patients sent from households, sums, village health centers and other hospitals. */The number of this section was amended and revised by the law of April 22, 2016/*

16.14. The special hospital is an organization that provides primary and referral medical care and services to employees of defense and law enforcement agencies, convicts serving sentences, and citizens who have been investigated and temporarily detained in connection with crimes.

/The number of this section was amended and revised by the law of April 22, 2016/

16.15. The specialized center will provide consultation care and services on an outpatient basis in one of the main or specialized specialties, conduct training, research, and academic work, and provide other health institutions with expertise and methods. */This section was amended by the law of April 22, 2016/*

16.16. Hospital of various specializations is an organization with the functions of providing specialized care and services of the medical referral hierarchy in the form of outpatient and inpatient treatment, conducting training, research and academic work, and providing other health institutions with expertise and methods.

/This section was added by the law of April 22, 2016/

/This section was revised by the law of May 15, 2020./

16.17. The nursing center will provide care and services for inpatient treatment of elderly, chronically ill and disabled citizens who require constant care.

/This section was added by the law of April 22, 2016/

16.18. The organization providing health care and services shall provide health care and services to students and students of higher education institutions and children in risk situations, regardless of nationality. */The word "students" added by the law of January 17, 2024 to this section shall be changed to "students of higher education institutions and children at risk" and shall be enforced from September 1, 2024./*

/This section was added by the law of May 18, 2017/

16.19. The General Hospital of Traditional Medicine will provide basic and specialized specialty care and services of Mongolian traditional medicine.

/This section was added by the law dated May 15, 2020./

16.20. Support and services related to the functions specified in Article 16.10 of this law are jointly provided by several legal entities from one point will be

/This section was added by the law dated May 15, 2020./

16.21. With the function of determining whether the elderly and disabled citizens need constant care at the organization providing health care and services specified in Articles 15.1.7, 15.1.11, and 15.1.13 of this law, and making a conclusion

The hospital will operate an inspection

commission. /This section was added by the law dated June 5, 2024 and will be enforced from January 1, 2025./

16.22. The Government shall approve the working procedures of the Hospital Inspection Commission and the amount of incentives to be given to members. /This section was added by the law dated June 5, 2024 and will be enforced from January 1, 2025./

Article 17. Management and organization of state-owned and local specialized hospitals and general hospitals

17.1. Relations with the property of state and local specialized hospitals and general hospitals shall be governed by the Law on State and Local Property, and relations with management, organization, financing, and human resources by this Law and the Law on Medical Care and Services.

17.2. The Government shall make the decision to establish, reorganize, and liquidate state-owned and local specialized hospitals and general hospitals.

17.3. Relationships related to the establishment of private hospitals and special hospitals according to other relevant laws and regulations will manage.

17.4. Except for state-owned and local specialized hospitals and general hospitals in suman specified in Article 16.10 of this law, management of general hospitals shall be carried out by the hospital's board of directors and the executive management appointed by it. /This section was revised by the law of May 15, 2020./

17.5. The management of locally-owned organizations specified in Articles 15.1.2, 15.1.3, 15.1.4, 15.1.5, 15.1.6, 15.1.8, 15.1.9, 15.1.10, and 15.1.14 of this Law shall be governed by Article 11.1 of this Law. .9 and 12.2 shall be appointed and dismissed.

17.6. Apart from the provisions of Articles 17.4 and 17.5 of this law, the appointment and release of management of organizations shall be regulated by other relevant laws. will manage.

17.7. The board of directors of state-owned and local specialized hospitals and general hospitals shall have three members representing the owner, three members representing the community of the hospital, and three members representing the public. /This article was amended by the law of April 22, 2016/

~~17.7.1. to approve or change policies, plans, and internal procedures for the development of health institutions in accordance with relevant laws and regulations, and to determine development trends~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.2. Approve the organization's budget plan, monitor investment and budget spending;~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.3. to approve and monitor the implementation of the organization's human resources development plan~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.4. monitoring the implementation of the quality program of medical care and services, quality and accessibility give an assessment~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.5. to discuss and evaluate reports of the organization and the activities of the head and director~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.6. to discuss and make decisions on financial and audit reports of the organization~~

/This provision was considered invalid by the law of April 22, 2016/

~~17.7.7. to establish procedures for receiving donations and assistance from enterprises, organizations, and citizens, and for spending them~~

/This provision was considered invalid by the law of April 22, 2016/

17.8. Members who meet the criteria specified in Article 15.1 of the Law on Medical Care and Services shall be nominated as members of the board of directors of state-owned hospitals as follows:

17.8.1. three members representing the owner of the hospital, one person each from the central state administrative organization responsible for health, financial and budgetary issues, and one person from the state administrative organization responsible for health insurance issues

by nomination;

17.8.2. three members to represent the hospital community, one person from each of the representatives of doctors, nurses, special specialists and employees other than medical specialists, from the meeting with the participation of the usual majority of the representatives of the community by proposing;

17.8.3. by selecting three members representing the public, one person each from an organization that protects the rights and legal interests of the insured, a non-governmental organization operating in the field of health, and a representative of the health professional association, association, and professional branch council.

[/This section was added by the law of April 22, 2016/](#)

17.9. Members who meet the criteria specified in Article 15.1 of the Law on Medical Care and Services shall be nominated as members of the Board of Directors of a locally-owned hospital as follows:

17.9.1. by nominating three members to represent the owner of the hospital, one person each from the Governor's Office of the province and district, the Department of Health of the province and the capital, and the health insurance unit of the province and district;

17.9.2. by nominating three members representing the hospital community in accordance with Article 17.8.2 of this law from a meeting attended by the usual majority of the community;

17.9.3. by selecting three members representing the public in accordance with Article 17.8.3 of this law.

[/This section was added by the law of April 22, 2016/](#)

17.10. The Board of Directors has the following rights:

17.10.1. Approve medical development policies and plans in accordance with the government's health policies and plans;

17.10.2. to approve the human resources development plan of the hospital in accordance with the policies and plans of the health sector;

17.10.3. to discuss the hospital budget for the current year and approve the budget allocation;

17.10.4. establish hospital organizational structure, maximum number of employees, salary fund in accordance with budget limits;

17.10.5. appoint and release the director of the hospital according to the relevant procedures;

17.10.6. to approve the procedure for selecting the deputy director of the hospital and management of the organizational unit;

17.10.7. to approve the hospital's annual and mid-term investment plan;

~~17.10.8. Discussion and conclusion of the concession and other public and private sector partnership projects to be implemented in the hospital release;~~

[/This provision was considered invalid by the law of December 9, 2022./](#)

17.10.9. make evaluations and conclusions on the quality and availability of medical care and services;

17.10.10. discuss the report of the hospital's operation and make a conclusion;

17.10.11. review the contract with the director of the hospital;

17.10.12. to discuss financial, budget performance and audit reports of the hospital;

17.10.13. discuss the spending of donations and aid given by enterprises, organizations, and citizens, and monitor their implementation;

17.10.14. if deemed necessary, have an external evaluation of the hospital's operation and performance by a professional organization or expert;

17.10.15. other powers stipulated by law. */This*

[section was added by the law of April 22, 2016/](#)

17.11. The Board of Directors has the following duties:

17.11.1. to support the implementation of organizational development and human resource development plans;

17.11.2. supporting the implementation of the hospital's annual and mid-term investment plans, control;

17.11.3. monitor the budget expenditure of the hospital for the current year;

17.11.4. select and appoint the director of the hospital in accordance with the relevant regulations, release him, or dissolve him if he fails to release him;

~~17.11.5. monitor the implementation of the concession and public-private partnership projects implemented in the hospital; /This provision was considered invalid by the law of December 9, 2022./~~

17.11.6. to impose responsibility in accordance with laws and regulations on matters related to the implementation of the hospital director's contract;

17.11.7. resolve the issue of compensation for damages caused to the hospital due to illegal actions or omissions of the hospital director in accordance with the relevant legislation;

17.11.8. to publicly report on the activities of the board of directors;

17.11.9. other obligations stipulated by law.

[/This section was added by the law of April 22, 2016/](#)

Article 18. Registration of health institutions in the state registry

18.1. Health care institutions shall be registered in the state registry in accordance with the procedure specified in the Law on State Registration of Legal Entities.

18.2. The health institution is considered to be established from the date of its registration in the state register.

[/Article 18 above was amended by the law of January 29, 2015/](#)

Article 19. Issuance, extension and cancellation of special licenses for activities in the field of health */The title of this*

[article was amended by the law of April 22, 2016/](#)

19.1. Any type of health care facility with a description of the need to operate in the field of health, with appropriate buildings, equipment, equipment, and human resources, shall be granted a special license to operate in the field of health (hereinafter referred to as "special license"). */This section was amended by the law of April 22, 2016/*

19.2. The central state administrative organization in charge of health issues for the provision of care and services at the national level and foreign-invested health care institutions, the state administrative organizations in charge of drugs and medical devices, and other health institutions of provinces and capitals shall obtain special licenses specified in the Law on Medicines and Medical Devices. the Department of Health will issue a special license /hereinafter referred to as "special licensing authority". */This section was amended by the law dated April 22, 2022./ / This section was amended by the law dated June 5, 2024 and will be enforced from October 1, 2024./ / This section Amended by the law of April 22, 2016/*

19.3. A special license to engage in activities in the field of health shall be granted in the following areas:

19.3.1. provide medical care and services;

19.3.2. production and export of medicines, traditional medicines, biological products, their raw materials, narcotic drugs, psychoactive drugs, medical equipment, laboratory diagnostic equipment, and medical supplies; */This provision was amended by the law dated January 6, 2023./ / This provision was amended by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

19.3.3. import and supply of drugs, narcotic drugs, psychoactive drugs, medical equipment, laboratory diagnostic equipment, and medical supplies; */This provision was revised by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

19.3.4. sale of drugs, medical equipment, narcotics; */This provision was revised by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

~~19.3.5. sale of medicines, medical equipment, narcotics and psychoactive drugs; /~~
This provision was deemed invalid by the law of June 5, 2024. and will be enforced from October 1, 2024./

~~19.3.6. production, import, supply, and maintenance of medical instruments, equipment, accessories, prostheses; /This provision was deemed invalid by~~
the law of June 5, 2024, and will be enforced from October 1, 2024./

~~19.3.7. import, production and supply of household insecticides and rodenticides, sterilization and disinfection agents; /~~
This provision was considered invalid by the law of June 17, 2022./

19.3.8. sale and service of household insect and rodent extermination, sterilization and disinfection agents.
[/This section was added by the law of April 22, 2016/](#)

19.4. Based on the health demands and needs of the population, the priority direction for issuing special licenses shall be determined by the central state administrative organization in charge of health issues for a period of three years.

[/This section was amended by the law of April 22, 2016/](#)

19.5. The organization applying for a special license shall obtain a description of needs from the authorized organization for granting a special license in the following cases, within the framework of the priorities specified in Article 19.4 of this law:

19.5.1. start new activities in the field of health;

~~19.5.2. purchase and repair expensive medical equipment; /This provision was deemed invalid by the law of June 5, 2024, and will be enforced from October 1, 2024./~~

19.5.3. to increase the current capacity of the health care institution by 30 percent or more;

19.5.4. construction, expansion, and renovation of buildings for the purpose of health institutions.
/This section was added by the law of April 22, 2016/

19.6. The organization applying for a special license shall submit its request for a needs assessment to the authorized organization for granting a special license together with the project of professional activities, and the project shall include the type of organization and assistance and services, the planned location, the planning of the area of buildings and structures, the composition of human resources, technical and technological forces. power and investment sources are included.

/This section was amended by the law of April 22, 2016/

19.7. Needs assessment shall be carried out by professional associations and associations selected by the competent licensing authority. /
This section

was amended by the law of April 22, 2016/

19.8. Within 10 working days from the date of receipt of a request for a special license, the authorized organization to issue a special license shall issue a definition of needs based on the conclusion made by the organization specified in Article 19.7 of this law. /This section was amended by the law of January 6, 2023./

/This section was added by the law of April 22, 2016/

19.9. The organization applying for a license shall develop a construction plan based on the definition of needs and have it reviewed and approved by the competent authority in accordance with the relevant laws and regulations. /This section was added by the law of April 22, 2016/

19.10. In order to obtain a special permit, in addition to the provisions of Article 5.1, Clause 3 of the Law on Permits, the following documents must be prepared: /This section was amended by the law of June 17, 2022./

19.10.1. founder's decision;

19.10.2. description of the needs issued by the authority to grant special licenses; /This clause was amended by the law of April 22, 2016/

19.10.3. project of professional activity specified in Article 19.6 of this law;
/This clause was amended by the law of April 22, 2016/

19.10.4. a decision made by the relevant organization on whether the building of the health care organization was built according to the professional activity project and approved budget and can be used for its intended purpose;
/This clause was amended by the law of April 22, 2016/

~~19.10.5. of the relevant organization that the medical instruments and equipment meet the safety requirements conclusion;~~
/This provision was deemed invalid by the law of June 5, 2024, and will be enforced from October 1, 2024./

19.10.6. creating a list of medical specialists, specialist registration numbers, and employment relations permission granted.
/The number of this section was amended and revised by the law of April 22, 2016/

19.11. Licensing authorities shall receive the applicant's documents specified in Article 19.10 of this law, appoint a part-time expert team to review the application, and the requirements for the documents shall be approved by the member of the Government in charge of health issues. /This section was amended by the law dated January 6, 2023./ / The number of this section was amended and revised by the law dated April 22, 2016/

~~19.5.1. the founder shall submit the documents specified in Section 19.3 of this Law together with the application to the organization specified in Section 19.2 of this Law~~
/This provision was considered invalid by the law of April 22, 2016/

19.12. The expert team specified in Article 19.11 of this law shall review the application as follows:

- 19.12.1. verify the documents prepared by the applicant;
- 19.12.2. to study the decision made by the relevant organization specified in Article 19.10.4 of this law on the construction performance of the organization applying for a special permit;
- 19.12.3. to check and evaluate the implementation of the project of professional activities specified in Article 19.10.3 of this law;
- 19.12.4. to discuss and decide whether or not to grant a special license by the authorized organization for granting a special license.

/ This section was added by the law of April 22, 2016/

19.13. The organization referred to in Article 19.2 of this law shall decide whether or not to issue a special license within 30 days from the date of receipt of the founder's application and relevant documents. */The number of this section*

was amended and revised by the law of April 22, 2016/

19.14. The special permit will not be issued in the following cases:

- 19.14.1. the documents specified in Article 19.10 of this Law have not been completed;
- 19.14.2. it has been established that the documents specified in Article 19.10 of this law have been forged;
- 19.14.3. does not meet the conditions and requirements of the special permit;
- 19.14.4. the decision of the organization specified in Article 19.10.4 of this law has not been issued;
- 19.14.5. the organization applying for a special license has been dissolved;
- 19.14.6. the applicant's medical license has been canceled in accordance with this law, other laws and regulations, and six months have not passed since a decision was made not to issue a special license on the basis of Article 19.14.2 of this law. */This provision was amended by the law dated January 6, 2023./ / This section was added by the law dated April 22, 2016/*

19.15. The licensing authority shall notify the applicant of the decision on the refusal to grant a license within two working days in writing or electronically through the system and official e-mail provided in Article 18.2 of the Law on Transparency of Public Information. */This section was amended by the law of January 6, 2023./ / This section was amended by the law of January 12, 2024./*

/ This section was added by the law of April 22, 2016/

19.16. The holder of a special license shall make a request for the extension of the special license period to the organization that issued the special license at least 30 days before the end of the period. */The number of this section was amended by the law of April 22, 2016/*

19.17. In addition to Article 5.5 of the Law on Permits, the period of the special permit is subject to the following conditions will be extended if it is met: */This section was amended by the law of June 17, 2022./*

19.17.1. Conclusions of the authorized organization that carried out progress monitoring and inspection of the activities of the organization during the period of granting the special license; */This provision was amended by the law of November 11, 2022./*

19.17.2. the inspection report specified in Article 19.25 of this law of the authorized organization that issued a special license." */This provision was amended by the law of April 22, 2016/*

19.18. If the license is granted to the organization for the first time, it is for a period of three years, if it is renewed, for a period of five years will be given.

/ This section was added by the law of April 22, 2016/

19.19. Licensing authorities shall adhere to the period specified in Section 5.5 of the Law on Licensing when renewing or rejecting a special license for the operation of a health care facility and verifying the application. */This section was amended by the law of January 6, 2023./*

/ This section was added by the law of April 22, 2016/

19.20. In addition to Article 6.2 of the Law on Permits, the organization specified in Article 19.2 of this Law shall revoke a special license on the following grounds: */This section was amended by the Law of June 17, 2022./*

[/This section was amended by the law of April 22, 2016/](#)

19.20.1. the special permit has not been extended; */This*

provision was amended by the law of January 6, 2023./

~~19.20.2. did not start operating within six months after obtaining a special permit. */This section was deemed invalid by the law of January 6, 2023./*~~

19.20.3. the health care institution is not registered in the state register of legal entities in accordance with relevant laws and regulations;

[/This provision was added by the law of April 22, 2016/](#)

19.20.4. the competent authority has concluded that the building and equipment of the health care institution do not meet the requirements for operation;

[/This provision was added by the law of April 22, 2016/](#)

19.20.5. it is not possible to provide health care and services specified in the special license due to the lack of professional human resources; */This provision was*

added by the law of April 22, 2016/

19.20.6. it was concluded by the competent authority that there is a risk of health care, service quality and safety;

[/This provision was added by the law of April 22, 2016/](#)

19.20.7. the holder of the special license engaged in health care and services other than the approved activities and types; */This provision was added by the law of April 22, 2016/*

19.20.8. other grounds provided by law.

[/This provision was added by the law of April 22, 2016/](#)

[/The number of this section was amended by the law of April 22, 2016/](#)

19.21. Before revoking the permit, the licensing authority shall notify in advance about the removal of the conditions specified in Articles 19.20.3, 19.20.4, 19.20.5, 19.20.6, and 19.20.7 of this Law, and Article 6.1 of the Law on Permits will be temporarily suspended for the specified period. */This section was amended by the law of June 17, 2022./*

[/The number of this section was amended and revised by the law of April 22, 2016/](#)

19.22. If the decision to cancel a special license applies to some directions and types of health care and services provided, the license to engage in that activity shall be partially revoked.

[/This section was added by the law of April 22, 2016/](#)

19.23. The special license shall be reissued if the conditions specified in Articles 19.20.3, 19.20.4, 19.20.5, 19.20.6, and 19.20.7 of this Law are completely removed.

[/This section was added by the law of April 22, 2016/](#)

19.24. The decision on cancellation or suspension of the special license for the operation of the health care institution by the authorized body specified in Article 19.2 of this law shall be notified to the special license holder organization and the tax authority within two working days after the decision, and the decision shall be made public. */This section was amended by the law of January 6, 2023./*

[/This section was added by the law of April 22, 2016/](#)

19.25. In addition to the provisions of Article 3.2, Clause 1.2 of the Law on Licensing, the competent authority for granting a special license shall supervise the health care institutions granted a special license in the following areas: */This section was amended by the Law of June 17, 2022./*

19.25.1. to monitor and evaluate the implementation of the project specified in Article 19.10.3 of this law aimed at meeting operational standards and special permit requirements;

19.25.2. To extend the period of special permit and supervise according to citizens' complaints and suggestions.

[/This section was added by the law of April 22, 2016/](#)

19.26. The unified database of licensed health care facilities will be a reference for information on health care facilities at the national level, and each health care facility will have a special license number.

[/This section was added by the law of April 22, 2016/](#)

19.27. The database of special permits for health care institutions is in accordance with Article 5.3, Clause 3 of the Law on Permits

shall contain the specified information and shall be updated at least twice a year. */This*

section was amended by the law of June 17, 2022./

/This section was added by the law of April 22, 2016/

19.28. The procedure for maintaining, updating and using the unified database of special licenses of health institutions shall be approved by the member of the Government in charge of health. */This section was added by the law of April 22, 2016/*

19.29. Assessment of needs, evaluation of professional activity projects, determination of needs, granting, extension, suspension, restoration, cancellation of special licenses, working procedures of the special licensing commission, selection and employment of part-time experts shall be regulated by the Government in charge of health. members, the definition of needs and the amount of service fees related to the granting of special licenses, and the standards of related expenses shall be jointly approved by the members of the Government in charge of finance, budget and health issues.

/This section was added by the law of April 22, 2016/

Article 20. Rights and obligations of health care institutions

20.1. The health care organization shall have the following rights:

20.1.1. to submit issues related to the health of the population to higher professional organizations or local self-governing and local administrative organizations;

20.1.2. to provide professional advice and instructions to enterprises, organizations, families and individuals;

20.1.3. making demands on government and non-government organizations and citizens on specific issues of the profession;

20.1.4. in the case of demanding actions contrary to the organization's goals, rights, and obligations, the assistance and services refuse to show;

20.1.5. reimburse the guilty party for unexpected expenses incurred by the health care institution due to accidents and poisoning caused by the wrongful actions of citizens or organizations;

20.1.6. to citizens and legal entities in the field of preventing the spread of infectious diseases and eliminating the causes issue demands and warnings;

/This clause was added by the law of April 29, 2020./

20.1.7. other rights provided by law.

/The number of this provision was amended by the law of April 29, 2020./

20.2. The health care organization undertakes the following duties:

20.2.1. to comply with laws and regulations on health, decisions of higher professional organizations, local self-government and local administrative organizations, and requirements of state inspectors;

20.2.2. buildings, medical equipment and other related hardware and medical software meet hygiene and standard requirements, meet the specifics of the medical staff's work, and create safe operating conditions; */This provision was amended by the law dated January 12, 2024./ /This provision was amended by the law dated June 5, 2024 and will be enforced from October 1, 2024./*

20.2.3. to meet the requirements of quality standards in their activities;

20.2.4. to publicize laws and regulations on health;

20.2.5. to cooperate with other organizations to provide health education to individuals, families, and communities, and to create an environment that promotes health among the population;

20.2.6. to submit reports and news on their activities on time, to provide other organizations and citizens with information related to their activities on health issues;

20.2.7. a method of supporting medical specialists to improve their knowledge and providing social security for employees measure and implement;

20.2.8. when using software to exchange information with people and legal entities other than health institutions, be connected to the main system specified in Article 18.3 of the Law on Transparency of Public Information; */This clause was added by the law of January 12, 2024./*

20.2.9. other obligations stipulated by law. */The*

number of this provision was amended by the law of January 12, 2024./

Article 21. Regulations of health institutions

21.1. Health care institutions have rules.

21.2. The rules of state-owned health institutions, regional and capital health departments shall be approved by the member of the government in charge of health issues.

21.3. The rules of the health care organization shall include the following:

21.3.1. the main goals and functions of the organization;

21.3.2. the management team and its powers;

21.3.3. source of financing;

21.3.4. capital expenditure.

Article 22. Accreditation of activities of health institutions

22.1. Health care organizations shall voluntarily assess the operation of their organization and the technology and quality of care and services provided to the population and obtain accreditation.

22.2. Accreditation of health care institutions by the central state administrative organization in charge of health care will be given.

[/ This section was amended by the law dated August 17, 2012/](#)

22.3. The accreditation organization specified in Article 22.2 of this law shall evaluate the structure and operation of the health care organization, the technology and quality of medical care and services by part-time experts and make a conclusion.

22.4. Procedures for accreditation of health institutions, expert selection and employment, and evaluation criteria shall be jointly approved by the member of the government in charge of health, and the amount of service fees and relevant cost standards shall be jointly approved by the members of the government in charge of finance, budget and health.

[/ This section was amended by the law of April 22, 2016/](#)

CHAPTER FIVE HEALTH FINANCING SYSTEM

Article 23. Health financing system

23.1. The health financing system is aimed at improving the health of the population, providing equal, accessible, quality health care and services to the population, and increasing efficiency.

Article 24. Financing of health care and services

24.1. Funding for health care and services is the state budget, health insurance, special government funds and enterprises, organizations, communities, citizens' donations, paid care and services of health care institutions, income from other activities, and other sources not prohibited by law. consists of sources.

[/ This section was amended by the law of January 29, 2015/](#)

[/ This section was amended by the law of April 22, 2016/](#)

24.2. The health care and service package, quantity, quality criteria, payment amount, financing and control procedures specified in clauses 24.6.3 and 24.6.4 of this law shall be approved by the Government in charge of health care and financial and budgetary matters in accordance with relevant laws and regulations. approved by the member.

[/ This section was revised by the law of August 28, 2020./](#)

24.3. The procedure and list of paid care and services provided by state-owned health care institutions shall be jointly approved by the member of the government in charge of health care and the standard payment rate.

24.4. The health care organization shall collect from the citizen the payment for the care and services provided to the citizen without health insurance, except for the care and services specified in Article 24.6.10 of this law.

[/ This section was revised by the law of August 28, 2020./](#)

24.5. The state-owned health care organization shall provide additional and paid care and services in accordance with the law, and shall use the income earned to improve the working conditions of health care workers, provide social security, purchase equipment, medicine, and medical equipment, repair, and provide services. The model procedure will be jointly approved by the members of the government in charge of financial and health issues.

24.6. The state is responsible for the following payments for health care and services for citizens of Mongolia:

[/This section was amended by the law dated August 28, 2020./](#)

24.6.1. costs of obstetric care and services related to pregnancy, childbirth, and the postpartum period; */This clause was amended by the law of April 22, 2016/*

24.6.2. certain medical care and services provided to children by state-owned health institutions; */This provision was amended by the law of April 22, 2016/*

24.6.3. Epidemiological services, mandatory and epidemiological immunization, disinfection and disinfection of infectious disease centers;

24.6.4. unless otherwise provided by law, public health care and services, health care and services during disasters;

[/This provision was amended by the law of January 12, 2024./ / This provision was amended by the law of January 29, 2015/](#)

[/This provision was amended by the law of April 22, 2016/](#)

[/This provision was amended by the law dated August 28, 2020./](#)

24.6.5. treatment of an injured or sick person who went to save a person's life in an unavoidable situation;

24.6.6. certain treatments for tuberculosis, cancer, mental disorders; */This clause was amended by the law of January 29, 2015/*

24.6.7. the cost of certain drugs for diseases and palliative treatment that require long-term compensatory treatment.

24.6.8. medical and mental rehabilitation assistance and services for victims of physical and sexual violence and exploitation. */This clause was added by*

[the law of January 19, 2012/](#)

[/This provision was amended by the law of April 22, 2016/](#)

~~24.6.9.24 Medical expenses for children with disabilities up to the age of 9.16.~~

[/This provision was added by the law of February 7, 2013/](#)

[/This provision was considered invalid by the law of April 22, 2016/](#)

24.6.10. emergency and emergency medical care, diagnosis and treatment of infectious diseases, some assistance and services provided at the level of households, districts, and villages.

[/This provision was added by the law dated August 28, 2020./](#)

24.7. The procedure for choosing the health care and service packages, payment amounts and health insurance contracts specified in Section 9.1 of the Law on Health Insurance shall be based on the proposal of the central state administrative organization in charge of social insurance and health issues, as stipulated in the Law on Health Insurance To be approved by the National Health Insurance Board.

[/This section was amended by the law of January 29, 2015/](#)

[/This section was amended by the law of April 22, 2016/](#)

CHAPTER SIX RIGHTS, DUTIES AND SOCIAL GUARANTEE OF HEALTH WORKERS

Article 25. License to engage in professional activities of a medical specialist, post-graduate training and degree of qualification

[/The title of this article was modified by the law of April 22, 2016/](#)

25.1. Medical care and services will be provided by a medical specialist with a license to engage in professional activities, and care and services will be provided only in the type for which permission was granted. */This section was amended by the law of April 22, 2016/*

25.2. The license to engage in the professional activity of a medical specialist shall be of the following types: treatment, medication, nursing, midwifery, and rehabilitation. */This section was amended by the law of April 22, 2016/*

25.3. A medical specialist who has graduated from a university or college licensed to provide medical education and has passed the professional activity examination will be granted a professional activity permit for the following period of time by the member of the Government in charge of health issues:

25.3.1. permission to engage in treatment activities for a resident doctor for a period of three years; */This section was amended by the law of January 6, 2023./ / This provision was amended by the law of April 22, 2016/*

25.3.2. five-year license to practice medical treatment for a qualified doctor who has completed the basic qualification training for a period of time;
/ This clause was amended by the law of April 22, 2016/

25.3.3. permission to practice medical treatment for a junior doctor for a period of five years; */This provision was added by the law of April 22, 2016/*

25.3.4. a license for pharmacists and pharmacists to carry out drug manufacturing activities for a period of 5 years; */The number of this provision was amended by the law of April 22, 2016/*

25.3.5. a permit for nurses to engage in nursing activities for a period of 5 years;
/ The number of this provision was amended by the law of April 22, 2016/

25.3.6. Midwives' permission to practice midwifery for a period of 5 years.
/ The number of this provision was amended by the law of April 22, 2016/

25.3.7. a permit for a rehabilitation specialist to carry out rehabilitation activities for a period of five years.
/ This provision was added by the law of April 22, 2016/

25.4. The resident doctor stipulated in clause 25.3.1 of this law shall work in a specialized specialty hospital and a general hospital licensed for post-graduate training by signing an employment contract during the period of basic specialty training.
/ This section was amended by the law of April 22, 2016/

25.5. The permission to engage in professional activities other than those specified in Article 25.3.1 of this law shall be extended for a period of five years to the medical specialist who has attended continuous training every year and worked full-time.
/ This section was amended by the law of April 22, 2016/

25.6. A citizen of Mongolia who has graduated from a medical education school abroad, or a foreign citizen who has graduated from a medical education school in Mongolia, and attends training as a resident doctor in Mongolia, shall receive a professional activity permit in accordance with Article 25.3 of this law. */ This section was amended by the law of January 6, 2023./ / This section was amended by the law of April 22, 2016/*

25.7. A Mongolian citizen who has a license to practice treatment, nursing, midwifery, medicine, and rehabilitation issued by a foreign authority may be granted a license to practice that profession directly.

/ This section was added by the law of April 22, 2016/

25.8. A foreign hospital that meets the following criteria for permission to engage in professional activities in Mongolia
The specialist will be given:

25.8.1. Graduated from a medical education school and received a medical education equivalent to the Mongolian medical education degree;

25.8.2. have a valid license to engage in professional activities in their country or equivalent documents;

25.8.3. has a valid document proving that he has studied in various fields of specialization and has worked in specialized fields for five or more years;

25.8.4. Have a contract or agreement to work in a health institution in Mongolia. */This section was added by the law of April 22, 2016/*

25.9. A permit to engage in professional activities in Mongolia for a period of up to two years shall be granted to a foreign citizen specified in Article 25.8 of this Law in a simplified procedure under the following conditions:

25.9.1. permission for up to six months only once without examination of permission to engage in professional activities;

25.9.2. Passed the examination for a permit to engage in professional activity for a period of more than six months

in case.

25.10. A foreign medical specialist with a permit specified in Article 25.9 of this law shall conduct his professional activities in the territory of Mongolia in the Mongolian language and, if necessary, with translation.

25.11. Post-graduate training of a medical specialist will be of two types: specialization and continuous, and post-graduation training includes basic and specialized training.

25.12. The management of the activities related to the license to engage in the professional activities of medical specialists and post-graduation training shall be carried out by the central state administrative organization responsible for health issues.

25.13. The state organization authorized by the central state administrative organization in charge of health issues shall organize the activities of issuing, extending, compensating, revoking licenses for medical professionals to engage in professional activities, as well as awarding post-graduate training and qualification degrees, and the participation of professional associations and associations.
will provide.

25.14. Under the central state administrative organization responsible for health issues, there will be a part-time council to provide methodological support for the licensing of medical professionals, the awarding of qualification degrees, and post-graduate training activities.

25.15. Organization and management of activities related to licensing of medical specialists, provision of unified management of activities related to licensing, methodical support of part-time council members, working procedures, organization of licensing examinations, calculation of set hours, issuance of license certificates, reimbursement procedures, documents to be prepared, professional activity permit certificate templates and relevant forms shall be jointly approved by the member of the government in charge of health, and the relevant cost standards shall be jointly approved by the member of the government in charge of finance, budget and health. */This section was amended by the law of January 6, 2023./*

25.16. The composition of part-time councils for methodological support in post-graduation training and qualification activities of medical specialists, working procedures, procedures for awarding, compensation and revocation of qualification degrees, organizing qualification and continuous training, selecting and granting permission for training institutions, extension and cancellation procedures, the model of the license and certificate issued to the graduates of the qualification degree and post-graduation training, the member of the government in charge of health, the procedure for financing the expenses of the post-graduation training from the state budget, cost standards, the criteria for awarding training scholarships, the amount of the scholarship, and the examination of the qualification degree payment and expenditure standards shall be jointly approved by members of the government in charge of finance, budget and health issues.

25.17. The unified registry of medical specialists is a reference for information about medical specialists, and each medical specialist has a unique authorization number. */This section was amended by the law of January 6, 2023./*

/ This section was added by the law of April 22, 2016/

25.18. The unified registration database of medical specialists contains information about the date, month, and date of registration of medical specialists, profession, qualification, post-graduation training, degree of qualification, former and current organization, and current position, and it is updated annually. .

25.19. The procedure for maintaining, updating and using the unified registry of medical specialists shall be approved by the central state administrative organization responsible for health issues.

25.20. In addition to Article 6.2 of the Law on Licensing, the member of the Government in charge of health issues shall cancel the license of a medical specialist on the following grounds: */This section was added by the law of January 6, 2023./*

25.20.1. in accordance with Article 26.3 of this
law; */This provision was added by the law of January 6, 2023./*

25.20.2. in accordance with a valid court decision; */This provision was
added by the law of January 6, 2023./*

25.20.3. failed to fulfill the obligation to provide set hours during the valid period of the permit; */This
provision was added by the law of January 6, 2023./*

25.20.4. did not take or failed the permit examination; */This provision
was added by the law of January 6, 2023./*

25.20.5. did not engage in professional activity for more than two years for reasons other than those specified by law; */This provision was added by the
law of January 6, 2023./*

25.20.6. the medical specialist who attended post-graduate training with state budget funding did not fulfill his contractual obligations; */This provision was
added by the law of
January 6, 2023./*

25.20.7. did not fulfill the obligations stipulated by
the law. */This provision was added by the law of January 6, 2023./*

25.21. In addition to Article 6.2 of the Law on Licensing, the authorized person specified in Article 25.20 of this Law shall revoke the license granted to a foreign medical specialist on the following grounds: */This section was added by the Law of January 6, 2023./*

25.21.1. premature termination of the contract at the initiative of the organization or foreign medical specialist; */This provision was added by the law of January 6, 2023./*

25.21.2. institutional and foreign medical specialists have been found to have violated the Law on Health, the Law on Medicines and Medical Devices, the Law on the Legal Status of Foreign Citizens, the Law on Labor Migration and other related laws and regulations by the decision of the competent authority; */This provision was added by the law of January 6, 2023./*

25.21.3. it has been determined by the decision of the relevant organization that the foreign medical specialist has committed a violation of medical professional ethics or professional error. */This provision was added by the law of January 6, 2023./*

25.22. In case of fulfillment of the contractual obligations specified in Article 25.20.6 of this law, the permission of the medical specialist may be restored. */This part was added by the law of January 6, 2023./*

Article 26. Revocation and reissuance of the establishment of ethical norms of medical specialists and the permission to engage in professional activities

26.1. Ethical control committee of medical professionals and medicine at the central state administrative organization in charge of health, regional and metropolitan health departments, central hospitals, special professional centers, ethics subcommittees, research institutes, universities, special Sub-committee for Medical Ethical Control will work at the professional center. The model rules of ethics control committee and sub-committee, ethical standards of medical and medical professionals shall be approved by the member of the government in charge of health issues.

26.2. In addition to the rights and obligations of citizens regarding health provided by this law, the rights and obligations related to medical ethics and medical ethics may be determined by the central state administrative organization in charge of health.

26.3. Based on the decision of the Ethics Control Committee, the member of the government in charge of health issues, who seriously violates the ethical standards of medical professionals, the license to engage in professional activities of a medical professional may be revoked for a period of 6 months to 1 year, for professional misconduct and human life. , damage to health is determined by the appropriate organization and is invalid for a period of up to 1-3 years, unless criminal liability is imposed will make

26.4. The Ethical Subcommittee shall submit to the relevant authorized officials a proposal to impose punishment in accordance with the law on the medical professional who violates the norms of medical ethics and medical ethics.

26.5. A professional and ethical committee on the issue of cell, tissue, and organ transplantation will work at the central state administrative organization in charge of health issues. The member of the government in charge of the health issues of the rules and composition of the committee confirm.

/This section was added by the law of June 17, 2022./

Article 27. Oath of the Great Physician

27.1. Every person who graduated as a doctor from a university with a special license to provide medical education, "I, a doctor, swear to strictly observe the ethics of the doctor and state laws, and to devote my knowledge and compassion to the life and health of precious people." , I swear."

/This section was amended by the law of April 22, 2016/

27.2. The procedure for taking the oath specified in Article 27.1 of this law shall be approved by the member of the government in charge of health.

27.3. The name of the person taking the oath specified in Article 27.1 of this law shall be used.

Article 28. Rights and obligations of medical professionals

28.1. The medical specialist shall have the following rights:

28.1.1. making demands and giving advice to state and non-state organizations, their management, and citizens on professional matters;

28.1.2. mobilize the use of vehicles owned by citizens, enterprises, and organizations in cases where emergency medical care is necessary, such as childbirth or sudden illness or accident;

28.1.3. to refuse treatment or service in case of demands to perform actions contrary to the rights and obligations of the medical specialist and the life of the patient;

28.1.4. to provide the working conditions necessary to exercise the mandate of the position;

28.1.5. to improve professional skills and participate in post-graduate training every 5 years at the expense of the organization;

28.1.6. other rights stipulated by law.

28.2. Certain rights related to the specialty of a medical specialist may be established by the central state administrative organization in charge of health issues.

28.3. The costs incurred in connection with the exercise of the rights specified in Article 28.1.2 of this law shall be reimbursed by the relevant medical institution at the rate of ambulance service.

28.4. The medical specialist undertakes the following duties:

28.4.1. to fulfill the ethical norms of a medical professional, to value humanity and compassion, and not to use the profession against human health;

28.4.2. to provide medical assistance under any conditions to a citizen whose life is in danger due to a sudden illness, accident, or injury, or to a mother who is about to give birth, except as specified in Article 28.1.Z of this law;

28.4.3. work in compliance with health laws, diagnosis, treatment, preventive work standards, technology, guidelines for providing medical care and services;

28.4.4. to conduct training and advertising in the field of health education for the population, and to adopt healthy habits provide support;

28.4.5. to provide information about the patient's illness, disease, and the deceased to relevant organizations, citizens, and the family of the deceased;

28.4.6. constantly improve professional skills;

28.4.7. other obligations stipulated by law.

Article 29. Social security of health workers

29.1. The minimum standard of the special salary network for health workers shall be determined by the Government based on the proposal of the central state administrative body in charge of labor and the central state service body, taking into account the type and characteristics of health care and services.

29.2. Medical specialists, public health workers, other health workers who have worked for 25 years or more in state-owned health and other institutions, 10 years or more in family, community, village health centers and special hospitals providing primary care and services upon retirement, a one-time cash benefit will be calculated from the average basic salary, and the average amount of the salary for calculating the one-time benefit and the criteria for granting benefits shall be established in accordance with the procedure stipulated in the Civil Service Law. */This section was amended by the law of January 12, 2024./*

/This section was amended by the law of January 23, 2015/

/This section was amended by the law of April 22, 2016/

/This section was revised by the law of January 18, 2019./

29.3. The organization shall include in its budget the costs required for the provision of one-time monetary benefits specified in Articles 29.2 and 29.5

of this law. /This section was amended by the law of April 22, 2016/

29.4. Local administrative and local self-governing organizations, enterprises, and organizations shall take measures to provide incentives to medical specialists and support the improvement of social security.

29.5. Medical specialists, public health workers, and other medical specialists working continuously in family, sum, and village health centers and special hospitals providing primary care and services, once every three years for six months, state and local health care in the province. Medical specialists, public health workers, and other medical specialists who are continuously working in the organization will be given a monetary allowance equal to six months' basic salary once every five years. */This section was amended by the law of January 12, 2024./*

/This section was amended by the law of April 22, 2016/

/This section was amended by the law of January 18, 2019./

29.6. Health workers will undergo medical examinations and tests once a year free of charge.

29.7. For every 5 years of service, a health care worker shall be granted 1 day of additional leave in addition to the basic and additional leave prescribed by the Labor Law.

29.8. Every 5 years at the expense of the state for professional development training for medical specialists who have been working for 5 or more years in Sum, village health centers, team doctor branches, and special hospitals providing primary care and services include

[/This section was amended by the law of January 18, 2019./](#)

29.9. The procedure for granting monetary benefits specified in Article 29.5 of this law shall be jointly approved by the members of the Government in charge of financial, budgetary and health issues. *[/This section was added by the law of April 22, 2016/](#)*

[/This section was amended by the law dated May 15, 2020./](#)

Article 30. Additional remuneration and compensation for health workers

30.1. Health workers who have been mobilized in the center of an infectious disease under international curfew or during a disaster shall be paid Z times their salary for the period of work within 1 month in the place where the mobilization was organized.

30.2. If a health care worker dies due to infection while working in an internationally quarantined infectious disease center or while performing his duties, his family will be given a one-time grant equal to his 5-year basic salary. In case of temporary incapacity for work or incapacity for work due to injury or other damage to health, the pension, benefits, and the difference in salary received shall be paid for the total period of temporary incapacity for work or incapacity for work. *[/This section was amended by the law dated July 7, 2023./](#)*

30.3. Compensate the difference in compensation and wages for citizens mobilized in the epicenter of the international curfew will be given in the same way as a health worker.

30.4. If the citizen specified in Article 30.3 of this law does not work regularly, the salary shall be calculated at the minimum wage applicable at that time.

30.5. Salary increments and cash incentives will be provided to health care workers in accordance with the laws, and the government will approve their type, amount, and payment procedure.

CHAPTER SEVEN HEALTH CARE AND SUPERVISION

Article 31. Qualification and refresher training of medical specialists

[/This article was considered invalid by the law of April 22, 2016/](#)

~~31.1. The central state administrative organization in charge of health issues shall coordinate with the central state administrative organization in charge of education regarding the procedure for post-graduation qualification and refresher training of medical specialists, granting, extending, revoking, and granting professional degrees, and financial issues related to the amount and cost standards of service payments, shall be determined and implemented in cooperation with the central government administration organization in charge. *[/This part was considered invalid by the law of April 22, 2016/](#)*~~

~~31.2. Under the central state administrative organization in charge of health, a part-time council responsible for post-graduation qualification and refresher training of medical specialists, licensing, extension, cancellation, and granting of professional degrees may be established. approved by the land member. *[/This part was considered invalid by the law of April 22, 2016/](#)*~~

Article 32. Special rights of health care institutions

32.1. Written permission from the pregnant mother, her husband or family member, guardian or supporter, if necessary, in cases where the fetus in the mother's womb has been found to have genetic or organ abnormalities, or in special circumstances where the pregnancy may seriously endanger the life of the mother or the fetus and by the joint decision of the doctors, the pregnancy can be medically terminated. *[/This section was amended by the law of April 22, 2016/](#)*

32.2. Abortion shall be performed by a licensed obstetrician and gynecologist in an accredited hospital with a special license specified in Sections 14.2.2 and 14.2.3 of the Law on Medical Care and Services. *[/This section was amended by the law of April 22, 2016/](#)*

32.3. Procedures for abortion shall be approved by the member of the government in charge of health.

32.4. By law, the issue of compulsory administrative treatment of some sick people who may pose a danger to society will manage.

Article 33. Pathological examination

33.1. Pathology in order to determine whether the cause of death and the diagnosis of the disease were correctly established on the body of the deceased will be analyzed.

33.2. The procedure for the examination specified in Article 33.1 of this Law and the procedure for pathological tissue and cytological analysis of live specimens shall be approved by the member of the
[Government in charge of health issues. /This section was revised by the law of May 15, 2020./](#)

Article 34. Obtaining, analyzing, and processing donor blood, blood products, cells, tissues, and organs for therapeutic purposes, storage, transportation, transfer, disposal, and crossing of national borders

34.1. Obtaining, analyzing, processing, and storing donor blood, blood products, cells, tissues, and organs for therapeutic purposes, transportation, translocation, destruction, import and export shall be regulated by law. [/This article was amended by the law of January 19, 2018/](#)

Article 35. Prevention and control of infectious diseases

35.1. The government member in charge of health shall approve the procedures for prevention of infectious diseases, prevention of spread, suppression, isolation and curfew in case of outbreaks.

35.2. Measures to prevent infectious diseases of international curfew and natural outbreaks and reduce active outbreaks shall be carried out by local administrative bodies in cooperation with relevant organizations.

35.3. Individuals with infectious diseases and carriers of bacteria who may pose a threat to the health of others shall be isolated and treated in the hospital, and when necessary, a curfew shall be established by isolating their contacts.

35.4. Cultivating, multiplying, storing, stockpiling, transporting, and selling disease-causing bacteria and their toxins for laboratory and industrial purposes, across state borders, without the permission of the central state administrative organization in charge of health issues.
entry and exit are prohibited.

35.5 Public health measures to combat infectious diseases shall be regulated by the Law on Public Health Care and Services and other laws issued in accordance with it. [/This section was amended by the law of January 12, 2024./](#)

35.6. In order to prevent infectious diseases, citizens of Mongolia, foreign citizens permanently or temporarily residing in the country, and stateless persons shall be subjected to immunization.

35.7. The issue of organizing immunization shall be regulated by law.

135 Article No. Examination, examination and diagnosis for early detection of cancer

[/This item was added by the law of October 17, 2019./](#)

¹ 35 .1. Age, gender,

will be covered based on the health risk at the scheduled time.

¹ 35 .2. The central state administrative organization in charge of health issues for cancer prevention and early detection examinations, approve the procedure for inclusion in analysis and diagnosis and monitor its implementation.

¹ 35 .3. Preventive and early detection examinations, tests, and diagnoses specified in Article 9.4 of the Law on Health Insurance

35 of this law which is not covered¹ .the costs of cancer prevention and early detection examinations, tests, and diagnostics specified in paragraph 1 will be financed from the state budget.

Article 36. Methods used in diagnosis and treatment

36.1. The health care organization shall conduct diagnosis, treatment, and prevention activities in a manner approved by the central state administrative organization in charge of health care.

36.2. If a citizen is to be subjected to complex diagnosis or surgery, or to participate in medical research or experiments, the citizen, a child under 18 years of age, or a patient who has been found to be incompetent due to mental illness, must have a legal representative/parent, guardian, written consent is obtained from the sponsor.

36. Z. In the event that the use of complex diagnostic methods or the delay of surgery may endanger the patient's life, the problem can be resolved directly by doctors and medical institutions.

Article 37. Testing, registration and introduction of new methods of diagnosis, treatment and prevention

37.1. Procedures for testing, introducing, registering, verifying and reporting new methods of diagnosis and treatment in the field of medicine shall be approved by the member of the government in charge of health.

37.2. After conducting clinical trials of new methods and technologies for diagnosing, treating and preventing diseases

used in medical practice.

37.3. Procedures for obtaining and using human blood, blood products, biological fluids, tissues, and organs for the purpose of conducting medical experiments, research, and analysis shall be approved by the member of the government in charge of health.

37.4. Procedures for conducting research and analysis, testing, verifying, registering, informing, and introducing assistance and services for new products and services based on biotechnology, nanotechnology, and innovative technologies for diagnostic and therapeutic purposes are in charge of health and scientific affairs. Cabinet members will jointly approve. */This section was amended by the law of April 22, 2016/*

Article 38. Issuing a medical report

38.1. Doctors and medical institutions shall issue their opinion on the following issues:

38.1.1. Citizens of Mongolia, foreign citizens permanently or temporarily residing in the country, and stateless persons falling ill, suffering accidents, injuries, death, giving birth, getting artificial limbs, nursing, leg arrest, patient care;

38.1.2. partial or complete loss of working ability;

38.1.3. issue a conclusion on the autopsy of the body;

38.1.4. on other matters of health importance.

38.2. Probations specified in Article 38.1 of this Law shall be issued in electronic form and, if necessary, in writing, and shall be registered in the general database of probabilities. */This part was*

added by the law of January 12, 2024./

Article 39. Health care and services for mentally ill persons

39.1. Provision of health care and services to mentally ill persons shall be regulated by law.

^{1 39} Article No. Health care and services for children with disabilities

^{1 39} .1. A child with a disability can stay healthy under the constant supervision of his family, sum, village health center or general hospital.

receive medical care and services. */This*

section was amended by the law of April 22, 2016/

~~^{1 39} .2. The government member in charge of health issues shall approve the procedure for providing necessary medicines to disabled children.~~

/This section was repealed by the law of April 22, 2016/

~~^{1 1 39} .3. The state budget shall support the financing of measures for the provision of medicines specified in Article 39 .2 of this law.~~

/This section was repealed by the law of April 22, 2016/

~~^{1 39} .4. A qualified pediatrician will work in the family, sum, and district health centers.~~

/This section was repealed by the law of April 22, 2016/

~~^{1 39} .5. 39 services of this . The doctor referred to in clause 4 shall go on call when necessary to provide medical assistance to disabled children, law will be provided. /~~

This part was repealed by the law of April 22, 2016/ /This article was added by the law of February 7, 2013/

Article 40. Production, sale, import, and supply of medical instruments, equipment, accessories, and prostheses follow./

40.1. A legal entity that has received a special license from the central state administrative organization in charge of health issues to manufacture, sell, import, and supply medical instruments, equipment, accessories, and prostheses will be

engaged. */This section was amended by the law dated August 17, 2012/*

40.2. For the production, sale, import, supply, and use of medical instruments, equipment, accessories, and prostheses, the technical and quality certification documents of the products shall be attached.

40.3. The document specified in Article 40.2 of this law shall include the conditions for the product's material structure, quality, technical and other specifications, warranty period, repair and service, and the provision of accessories and reagents.

Article 41. Import, production, supply of household insect and rodent extermination, sterilization and disinfection agents, to sell

41.1. The state administrative organization responsible for medicines and medical devices shall be responsible for the registration and sale of household insecticides, rodenticides, sterilization and disinfection agents. */This section was amended by the law dated January 6, 2023./ /This section was amended by the law dated June 5, 2024 and will be enforced from October 1, 2024./ / This section Added by the law of August 17, 2012/*

41.2. The procedure for registering household insecticides, rodenticides, disinfectants, and disinfectants in the state register shall be approved by the member of the government in charge of health.

41.3. Assessment of needs related to activities related to registration of household insects, rodenticides, sterilization and disinfection agents, evaluation of projects of professional activities, selection and appointment of experts to define needs, working procedures of experts, government member in charge of health issues, related to providing needs definition the amount of payment for services, the standard of related expenses, and the standard of expenses to be paid to experts shall be jointly approved by the member of the Government in charge of health and financial and budget matters. */This part was added by the law of January 6, 2023./*

Article 42. Health control */The title of this article was amended by the law of November 11, 2022./*

42.1. To monitor, analyze, inspect and evaluate health care activities, to conduct inspections on the implementation of health laws, to report the results of the inspections, to remove the detected violations and deficiencies by the guilty official, and to impose administrative responsibility on the persons guilty of violating the laws in accordance with this law functions will be carried out by the central state administrative organization in charge of health issues, the authorized organization for inspection, and the department responsible for internal control of the health organization. */This section was amended by the law of November 11, 2022./ / This section was amended by the law of November 11, 2022./*

42.2. The authority of the state inspector may be granted to the head of the department and employee responsible for internal control over the quality and safety of health care and services. */This section was amended by the law of November 11, 2022./*

42.3. The rules of the office for internal control over the quality and safety of health care and services shall be approved by the member of the Government in charge of health and professional control. */This section was amended by the law of November 11, 2022./*

42.4. A part-time health quality control council may be established at the central state administrative organization in charge of health, and the rules and composition of the council shall be approved by the member of the government in charge of health.

**CHAPTER EIGHT CITIZEN
RIGHTS, RESPONSIBILITIES, BUSINESS UNITS, ORGANIZATIONS, PUBLIC
PARTICIPATION**

Article 43. Citizen's rights and duties

43.1. Citizens have the following rights to protect their health:

- 43.1.1. receiving help and services from doctors and health institutions;
- 43.1.2. select and register your family doctor;
- 43.1.3. to obtain information about one's health from a doctor or health institution;
- 43.1.4. refuse to undergo treatment, diagnosis and examination except for infectious diseases;
- 43.1.5. to submit petitions and complaints to relevant organizations about enterprises, organizations, and citizens that are operating against human health;
- 43.1.6. to obtain information from health institutions and employees in order to improve health education;
- 43.1.7. to keep information related to your health confidential within the law.

43.2. Citizens have the following obligations to protect their health:

- 43.2.1. acquiring health education, getting used to it, creating favorable living conditions;
- 43.2.2. to participate in the work that is planned to protect and support the health of the population;

43.2.3. prevent the spread of infectious diseases and observe curfew;

43.2.4. timely report to health care institutions about diseases, poisonings, accidents, injuries, and adverse environmental factors that are dangerous to human health and society;

43.2.5. to comply with the requirements of the health organization regarding refraining from or preventing risky behaviors that have a negative impact on human health, and stopping actions that have a negative impact on health;

43.2.6. undergo an infectious disease examination and analysis on his own initiative or at the request of a doctor or medical institution;

43.2.7. to obtain medical aid other than emergency medical aid in writing sent by the general specialist doctor of the household, village, village, or district health institution, or to receive the letter in electronic form; */This clause was amended by the law of January 12, 2024./*

43.2.8. not to interfere with the performance of the health worker's duties, not to attack his reputation or body;

43.2.9. not to provide false information with the aim of not disrupting the normal operation of the health care organization, or discrediting the reputation of the health care organization.

43.2.10. 35 of this law . scheduled for cancer prevention and early detection examinations, tests, and diagnoses specified in paragraph 1 be included in the period. /

/This provision was added by the law of October 17, 2019./

Article 44. Duties of enterprises and organizations regarding health protection and promotion

44.1. Enterprises and organizations of all types of property shall undertake the following responsibilities for the protection and promotion of health:

44.1.1. to comply with laws and regulations on health, decisions of the Government, local administration and local self-governing organizations, requirements of health organizations and state inspectors; */This provision was amended by the law of November 11, 2022./*

44.1.2. to organize measures to promote the health of employees of their organization, prevent diseases, and provide health education in accordance with the recommendations of the health organization;

44.1.3. take measures to improve working and hygienic conditions, reduce work incapacity, prevent any disease, especially poisoning, infection, accident, injury, and occupational disease, and strictly adhere to hygiene standards, norms, and procedures approved by the competent authorities to maintain;

44.1.4. Enterprises and organizations engaged in production and services that may adversely affect human health shall include in their annual budgets and plans the funds required for measures to prevent and protect against such effects, and shall ensure hygiene, technological conditions, product quality and safety of production and services. spend on operations;

44.1.5. to create conditions to prevent infectious diseases, poisoning, accidents, and injuries that endanger human health and society, and to carry out work and services that ensure safety.

44.1.6. prevention and early detection of diseases in accordance with the procedures specified in Article 8.5 of this law examination, analysis and diagnosis at the scheduled time;

/ This section was added by the law dated May 15, 2020./

44.1.7. a citizen, enterprise, or organization requires a health care institution or medical specialist to provide information about the client's health, without the consent of the client, his family, guardian, or authorized organization. public information is prohibited.

/ This section was added by the law dated May 15, 2020./

Article 45. Participation of non-governmental organizations in health protection and promotion

45.1. Non-governmental organizations may carry out the following activities for the protection and promotion of health:

45.1.1. public monitoring of the implementation of laws and regulations on health, demanding the elimination of detected violations, and submitting the matter to the competent authorities for resolution;

45.1.2. organize training, advertising, and health education aimed at promoting and protecting health, involving the community and citizens, and instilling healthy behavior, either alone or in cooperation with other organizations.

45.2. The suggestions of professional societies and associations may be taken into account when conducting the activities specified in Sections 8.1.18, 8.1.22, 12.1.2, 19.1, 19.2,

and 19.25 of this Law. /This section was amended by the law of April 22, 2016/

45.3. Procedures for execution of certain works and services in the health sector by non-governmental organizations, common requirements and criteria for non-governmental organizations shall be approved by the member of the Government in charge of health.

/ This section was added by the law of April 22, 2016/

CHAPTER NINE
OTHER THINGS

Article 46. Responsibilities for violators

46.1. If the act of an official who violates this law is not criminal, the liability stipulated in the Civil Service Law will wait.

46.2. Any person or legal entity who violates this law shall be held liable as provided for in the Criminal Law or the Law on Violations. /This item was amended by the law of December 4, 2015/

Article 47. Section 25.4 of this law shall be enforced from January 1, 2021.

/This item was added by the law of September 7, 2016/

D. DEMBEREL, CHAIRMAN OF THE CONGRESS OF MONGOLIA